CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

DECISION

Application no. 27790/02
by Yahya BALCI
against Turkey

The European Court of Human Rights (Second Section), sitting on 21 November 2006 as a Chamber composed of:

Mr J.-P. COSTA, *President,*
Mr A.B. BAKA,
Mr R. TÜRMEN,
Mr M. UGREKHELIDZE,
Mrs E. FURA-SANDSTRÖM,
Ms D. JOČIENĖ,
Mr D. POPOVIĆ, *judges,*

and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above application lodged on 12 April 2002,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Yahya Balcı, is a Turkish national who was born in 1960 and lives in Kırklareli. He is represented before the Court by Mr Fevzi Gümüş, a lawyer practising in Ankara.

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant is a member of Eğitim-Sen, a trade union of public employees. Eğitim-Sen is a member of the Confederation of Public Employees' Trade Unions (*Kamu Emekçileri Sendikaları Konfederasyonu*-hereinafter referred to as the "KESK"). In 2001 the Turkish Parliament

prepared a draft bill to amend the Act on Trade Unions. While this draft was being discussed before Parliament, the "KESK" organised a meeting in a park in Ankara to protest against the draft. The aim was to draw public attention to it and to achieve the withdrawal of the bill, which in their view did not meet international standards.

On 25 June 2001 a group of people, including the applicant, gathered in Kızılay. While a speech was being made, police officers intervened and tried to disperse the group. The officers verbally warned the group that the meeting was illegal, as no permission had been obtained from the relevant authorities pursuant to Law No. 2911 on meetings and demonstrations. The police officers then used truncheons, sticks and gas bombs to disperse the crowd. The applicant was injured during the incidents and obtained a medical report to that effect.

On an unspecified date, the applicant filed a complaint with the Ankara public prosecutor against the Governor of Ankara, the director of the Ankara police headquarters and the police officers who were involved in the incident.

Pursuant to Law No. 4483 on prosecution of civil servants, in order to be able to initiate criminal proceedings, the public prosecutor transferred the file to the Ministry of the Interior to obtain authorisation.

On 9 October 2001 the Ministry of the Interior sent a letter to the public prosecutor and, relying on Article 4 of Law No. 4483, requested that no action be taken against the accused persons. The Ministry considered that the force used by the police was justified and lawful in the circumstances of the case. In the letter, it was stated that the officers were under an obligation to disperse the demonstrators who had organised an illegal meeting. As a result, on 29 January 2002 the Ankara public prosecutor decided not to take any action concerning the complaint lodged by the applicant.

In the meantime, criminal proceedings were initiated against the applicant for violating Law No. 2911. On 14 November 2001 the Ankara Criminal Court acquitted the applicant. In its judgment, the court referred to Article 11 of the Convention and stated that everyone had the right to hold unarmed, peaceful meetings and demonstration marches without prior permission. According to the court, as the demonstrators' intention was to draw public attention to a draft bill, their aim was peaceful and did not upset public order or national security.

COMPLAINTS

The applicant complains first about the treatment to which he was subjected on 25 June 2001. In this respect, he invokes Article 3 of the Convention.

Furthermore, under Article 5 of the Convention he alleges that his right to liberty and security was breached as no criminal proceedings were initiated against the police officers, the director of the police headquarters and the Governor of Ankara.

Under Articles 6 and 13 of the Convention, the applicant complains that he had no effective remedy in respect of his ill-treatment complaint.

The applicant alleges under Article 7 of the Convention that he was sanctioned because of an act which did not constitute a criminal offence.

Under Articles 10 and 11 of the Convention, the applicant maintains that the police interference in the meeting constituted a breach of his right to freedom of expression and freedom of assembly.

Finally, without giving any specific reasons, the applicant invokes Articles 14 and 17 of the Convention.

THE LAW

On 22 December 2005 the Court communicated the application to the respondent Government. On 18 May 2006 the Government submitted their observations on admissibility and merits. On 31 May 2006 the applicant's representative was invited to submit by 12 July 2006 any further observations in reply, together with any claims for just satisfaction.

On 2 August 2006 the Registry sent a registered letter to the applicant's representative, informing him that the period allowed for the submission of the applicant's observations had expired on 12 July 2006 and that no extension of time had been requested. This letter was delivered to the applicant's representative on 11 August 2006. The Court notes that, in the said letter, the attention of the applicant's representative was drawn to Article 37 § 1 (a) of the Convention. The Registry has received no response to date.

In these circumstances, the Court considers that the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

Accordingly, Article 29 § 3 of the Convention should no longer apply to the case and it should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

S. DOLLÉ
Registrar

J.-P. COSTA
President